Barnwright Terms and Conditions

Version 2.2, October 12, 2026

These are the rules for using the Barnwright 3D designer. "We" and "us" mean Barnwright Software. "You" means the business that signs up.

You agree to them by ticking "I agree" and typing your name on your sign-up page. That is your signature, the same as signing on paper.

1. What you get

1.1 The **Barnwright 3D designer**. It includes:

(a) your **3D designer**, where your customers pick a building, its size, colors, doors, windows and options, see the price, and send you a quote request;

(b) your **Dealer Center**, where you keep your price list, your lots, your team, and your customers, quotes and orders; and

(c) your own 3D designer web address, a website code to show your 3D designer on your own website, hosting, updates and fixes, for as long as you use it.

1.2 It works alongside the software you already use, such as your website, your accounting and your rent-to-own company. It does not replace them.

1.3 We may add, change or improve features. We will tell you at least 30 days before we take away a main feature you use.

1.4 **Your 3D designer web address** is under barnwrightsoftware.com, such as yourbusiness.barnwrightsoftware.com. We pick it with you. Barnwright owns barnwrightsoftware.com. You can use this address while you use the 3D designer. You also get a website code to show your 3D designer on your own websites.

2. Getting set up

2.1 We set up your 3D designer for you at no charge: your buildings, sizes, prices, options, colors, logo, lots and 3D designer web address.

2.2 To do that we need your price list, photos of your buildings, and your options and colors. Please get them to us correct and on time.

2.3 Before your customers can use it, we show you your buildings and prices. You and your team can look at your 3D designer as a **preview** before you open it. Your customers can't see the preview. You check your buildings and prices and tell us they are right. You are responsible for the prices you approve.

2.4 **Setting it up for you.** Until you first open your 3D designer to customers, we can change your price list and settings to set it up for you. This can start as soon as we make your Dealer Center, before your owner first signs in: the terms you agree to on your sign-up page allow it, and we start from the business name, phone and email you give us there. That includes your buildings, sizes, prices, doors, windows, options, colors and logo, your business name and contact details, how your 3D designer looks and shows prices (including the line under the price), and your quote form (including the words that ask your customers if you may text them). We may use software, including AI assistants, to help make these changes. This ends for good the first time you open your 3D designer to customers or your first quote or order is saved, even if you close it again later. Your owner can stop it sooner in **Settings**, **Barnwright**. Only your owner can open your 3D designer to customers. What this never lets us do, and how your owner sees every change, is in 10.6.

3. What it costs

3.1 There is no setup fee.

3.2 **$250 a month**, or the amount on your sign-up page. It starts on your **start date**: the day we tell you, by email or text, that your 3D designer is ready to use. It includes your first lot, and it stays the same no matter how many lots you have.

3.3 **Each lot after your first is $250 one time**, or the amount on your sign-up page. You pay it before that lot opens. It is not refunded once the lot is open.

3.4 **Your card.** When you sign up, you save a card with our payment company, Stripe. Nothing is charged that day except the one-time fees for any extra lots. You allow us to charge that card for the monthly fee on your start date and on the same day each month after, and for any extra lots you ask for, until this agreement ends. You can change the card any time: ask us for the link. If we agree, you can pay by invoice instead.

3.5 If a payment doesn't go through, we try again and let you know. If it is still unpaid 15 days after we tell you, we may pause your account (section 8) until it is paid.

3.6 Prices don't include sales tax. You pay any tax that applies.

3.7 We may change our prices. We will tell you at least 30 days before. A change never charges you again for a lot you already paid for. If you don't agree, you can stop before the change starts.

4. Starting and stopping

4.1 This agreement starts when you sign up and continues month to month.

4.2 You or we can stop it at any time, for any reason, by telling the other 30 days ahead. An email is enough.

4.3 We can stop it sooner, or pause your account, if a payment is not made (3.5), if you seriously break these terms and don't fix it within 10 days after we tell you, or if the software is used against the law.

5. Your login and your team

5.1 Your owner is in charge of your account: who is on your team, which lots each person sees, and your settings. Your owner is responsible for the people they add.

5.2 Everyone uses their own login and keeps it private. Take people off your team when they leave.

5.3 Tell us right away if you think someone got into your account who shouldn't have.

6. Your prices and your buildings

6.1 You set your prices, options and the words your customers see. You are responsible for checking your price list and for every price and quote you give.

6.2 A price in the 3D designer is an estimate until you confirm the order with your customer. Say so in the line under the price.

6.3 The 3D pictures and floor plans help your customers choose. They are not construction drawings, engineered plans or permit papers. How your buildings are built and delivered is your responsibility, including building codes, permits, wind ratings and the delivery site.

6.4 Rent-to-own and other monthly payment figures are estimates from the numbers you give us. Barnwright is not a lender or a rent-to-own company. Your rent-to-own and financing contracts, and the laws about them, are your responsibility.

7. Texting and emailing your customers

7.1 Your 3D designer can ask your customers if you may text them, in words you choose. You must follow the laws about calling, texting and emailing customers: get their permission, keep a record of it, and stop when they ask, such as a reply of STOP. These laws include the Telephone Consumer Protection Act, the CAN-SPAM Act and the Florida Telephone Solicitation Act.

7.2 You are responsible for what you and your team send to customers, and for any texting or email service you connect.

8. If your account is paused

8.1 Your Dealer Center connects to Barnwright to confirm that your account is active and how many lots you have.

8.2 We pause your account if a payment is still unpaid 15 days after we tell you (3.5), if we stop under 4.3, or when this agreement ends. It also pauses by itself if your Dealer Center can't connect to Barnwright for 7 days in a row.

8.3 While it is paused, nothing new can be saved, quote requests can't be sent, and your 3D designer shows your phone number instead of the designer. You and your team can still look at and download everything.

8.4 When the reason is fixed, for example the payment goes through, we turn it back on. Nothing is deleted while it is paused.

8.5 Please don't try to get around the lot limit or the pause.

9. Your information

9.1 Your information belongs to you: your customers, quotes, orders, notes, prices, logo and settings.

9.2 We use it only to run, support, back up and improve your 3D designer, and when the law requires. We never sell it, and we never use your customers' details to market to them.

9.3 You can look at and download your information at any time, even while your account is paused.

9.4 You confirm that you have the right to give us the information you put in, including your customers' details.

9.5 When this agreement ends, we keep your information for 30 days so you can download it. After that we may delete it. Backup copies are deleted as the backups are replaced.

9.6 We keep your information safe with reasonable security. If someone gets into it without permission, we tell you right away and help you with what the law requires.

10. Help and changes from Barnwright

10.1 We can't look inside your Dealer Center unless your owner turns on **Run checks** or **Run checks and change my price list and settings** in **Settings**, **Barnwright**, or our setup access is on (2.4). Your owner turns either one on for 1 to 24 hours. It turns off by itself, and your owner can turn it off sooner. What your Dealer Center tells us on its own is in 8.1, 10.3 and 10.5.

10.2 While either one is on, we can run checks on how your Dealer Center is working. Every visit is written in a log your owner can see.

10.3 For help, tap **Help** in your Dealer Center or email support@barnwrightsoftware.com. A question sent from Help reaches us with who sent it, the screen they were on and a few facts about how your Dealer Center is working, never your customers or prices. When something on a page goes wrong, your Dealer Center tells us what went wrong, never what a customer typed.

10.4 After our setup access ends (2.4), we can change your price list and settings only while your owner turns on **Run checks and change my price list and settings** in **Settings**, **Barnwright**, for 1 to 24 hours. It turns off by itself, and your owner can turn it off sooner. A Barnwright person makes each change by hand in your Dealer Center, or approves it in our Control Room before it is saved. That is true even when we use software, including

AI assistants, to prepare a change.

10.5 Your Dealer Center tells us whether your 3D designer is open, whether we can change your price list right now and until when, whether your owner has agreed to these terms, which version of the software it runs, and when your price list was last saved and whether your owner or we saved it. This never includes your prices.

10.6 Whenever we can change your price list and settings (2.4 and 10.4), every change we make is listed for your owner in **Price list**, **History**, where your owner can put back an earlier price list. **Settings**, **Barnwright** shows the latest ones. This access never lets us see or change your customers, quotes, orders or team, change your lots, change where quote requests go or which websites show your 3D designer, or open or close your 3D designer. You are still responsible for checking your price list (6.1).

11. Please don't

(a) copy, sell, rent or share the software;

(b) try to take it apart or copy how it works;

(c) put your 3D designer on websites you don't own or haven't told us about;

(d) use it to send spam or to break any law;

(e) put in anything that harms the software or other users; or

(f) let anyone outside your team use your account.

12. Who owns what

12.1 Barnwright owns the software and everything we make for it: the 3D models, drawings, designs and code, and improvements to them, even ones that came from your ideas. You may use it for your business while this agreement is in place.

12.2 You keep owning your business name, your logo and your own content. You let us use them to run your 3D designer, for example to show your logo.

12.3 Your 3D designer shows a small "3D designer by Barnwright" line unless we agree otherwise.

12.4 We name your business as a Barnwright customer only if you say yes on your sign-up page.

13. Other companies

The software runs on, and connects to, services from other companies, such as web hosting, email, payments, and any form or texting service you connect. Their own terms apply to those services. We are not responsible for their outages or changes, but we will work to keep your 3D designer running.

14. Keeping it running

We work to keep it running day and night, but we can't promise it will never be down, slow or wrong. We may take it down briefly for updates, outside business hours when we can. We fix problems that are ours to fix as soon as we reasonably can.

15. Keeping each other's business private

We each keep the other's private business information private: for you, your prices, customers and sales; for us, the software and our pricing. We each use it only for this agreement and share it only with people who need it and keep it private too. This doesn't cover information that is already public, or that the law requires us to share.

16. Our promise

16.1 We will provide the software with reasonable care and skill.

16.2 Other than that, the software is provided "as is". As far as the law allows, we make no other promises, including that it fits a particular purpose, that it will never stop or have errors, or that it will bring you a certain number of sales.

17. Limits

17.1 Neither of us is responsible to the other for lost profits, lost sales, lost information that could have been downloaded, or indirect damages, even if warned they could happen.

17.2 Our total responsibility for all claims is limited to what you paid us in the 12 months before the claim.

17.3 These limits don't apply to fraud, intentional wrongdoing, money you owe us, or section 18.

18. Claims from other people

18.1 You will defend us against, and pay for, claims by others that come from your prices, your buildings or their delivery, your contracts with your customers, rent-to-own or financing, your calls, texts or emails, or your breaking these terms or the law.

18.2 We will defend you against, and pay for, claims by others that the software, as we provide it, copies their work (copyright) or their invention (patent). If that happens, we may change the software, get the right for you to keep using it, or end this agreement and refund what you paid ahead for time not used.

18.3 The one asking to be covered must tell the other quickly and help with the defense.

19. Changes to these terms

We may update these terms. We will tell you at least 30 days before a change takes effect, and put the new version and date at the top. If you don't agree, you can stop before the change starts. Using the software after that date means you accept the change.

20. The fine print

20.1 Florida law applies. Any lawsuit about this agreement will be in the state or federal courts for Charlotte County, Florida, and we both agree to those courts.

20.2 These terms and your sign-up page are our whole agreement about the software. They replace anything said or written before. If they say different things, your sign-up page wins.

20.3 We send notices by email, or by mail, to the address on your sign-up page. Please keep your details up to date.

20.4 You can't transfer this agreement to someone else without our written okay, which we won't unreasonably refuse if you sell your business. We can transfer it to a company that takes over our business.

20.5 Neither of us is responsible for delays caused by things we can't control, such as storms, power or internet outages, or outages at other companies.

20.6 If part of these terms can't be enforced, the rest still applies. Not enforcing a part is not giving it up.

20.7 Ticking "I agree" and typing your name on your sign-up page is your signature, the same as signing on paper.

20.8 Parts that should continue after this agreement ends keep applying, such as money owed, your information, who owns what, keeping things private, limits and claims.